

24CHCV02118 24CHCV02118

County: los-angeles

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Dept. F-46

Hearing Date: July 8, 2026

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DEFENDANT DARRON ALFRED MCCULLER'S MOTIONS TO (1) COMPEL SECOND DEPOSITION OF PLAINTIFF SEBASTIAN ROLDAN CARRANZA, AND (2) COMPEL SECOND PHYSICAL EXAMINATION OF PLAINTIFF SEBASTIAN ROLDAN CARRANZA

Motions filed on May 19, 2026 and May 26, 2026.

MOVING PARTY: Defendant Darron Alfred McCuller

RESPONDING PARTY: Plaintiff Sebastian Roldan Carranza

NOTICE: OK.

RELIEF REQUESTED: Orders compelling Plaintiff to appear for a second deposition and submit to a second physical examination.

RULING: Granted in part. Defendant is granted leave to take a limited subsequent deposition of Plaintiff and conduct a limited second physical examination of Plaintiff.

BACKGROUND

On June 7, 2024, Plaintiff filed this action against Defendant. On January 16, 2025, Defendant deposed Plaintiff. On March 25, 2025, Plaintiff underwent a defense medical examination with Dr. Jeffrey Yablon.

On May 19, 2026, Defendant filed a motion to compel a second deposition of Plaintiff, supported by the declarations of Austin L. Houvener and Dr. Dimitriy G. Kondrashov and exhibits. On June 9, 2026, Plaintiff opposed the deposition motion, supported by the declarations of Tara-Jane Flynn and John Hinestrosa and exhibits. On June 16, 2026, Defendant filed a reply and evidentiary objections.

On May 26, 2026, Defendant filed a motion to compel a second physical examination of Plaintiff, supported by the declarations of Austin L. Houvener and Dr. Dimitriy G. Kondrashov and exhibits. On June 24, 2026, Plaintiff opposed the examination motion, supported by the declarations of Tara-Jane Flynn and John Hinestrosa and exhibits. On June 25, 2026, Plaintiff filed an amended notice of errata regarding exhibits submitted with the Flynn declaration. On June 29, 2026,

Defendant filed a reply and evidentiary objections.

EVIDENTIARY OBJECTIONS

Defendant objects to the Hinestrosa declarations filed in opposition to both motions. The Court does not rely on the Hinestrosa declarations in resolving either motion. Because the challenged evidence is not material to the Court's ruling, the objections are overruled as moot.

DISCUSSION

Second Deposition of Plaintiff

"Any party may obtain discovery . . . by taking in California the oral deposition of any person, including a party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency." (Code Civ. Proc. § 2025.010.) "[A] deposition examination of the witness by all counsel, other than the witness' counsel of record, shall be limited to seven hours of total testimony." (Code Civ. Proc., § 2025.290, subd. (a).) "The court shall allow additional time, beyond any limits imposed by this section, if needed to fairly examine the deponent or if the deponent, or any other circumstance impedes or delays the examination." (Code Civ. Proc., § 2025.290, subd. (a).)

Under Code of Civil Procedure section 2025.610, "[o]nce any party has taken the deposition of any natural person, including that of a party to the action, neither the party who gave, nor any other party who has been served with a deposition notice pursuant to Section 2025.240 may take a subsequent deposition of that deponent." (Code Civ. Proc., § 2025.610, subd. (a).) However, "for good cause shown, the court may grant leave to take a subsequent deposition[.]" (Code Civ. Proc., § 2025.610, subd. (b).) A subsequent deposition may be warranted where the proposed examination concerns a factual issue that did not exist when the earlier deposition was taken. (*Carlson v. Superior Court of Los Angeles County* (1961) 56 Cal.2d 431, 439.) In determining good cause, the Court considers whether specific facts justify the requested discovery; discovery is not limited to admissible evidence and also serves trial preparation and the prevention of surprise. (*Associated Brewers Distributing Co. v. Superior Court* (1967) 65 Cal.2d 583, 586-588.)

Here, Defendant has shown good cause for a limited subsequent deposition of Plaintiff. Plaintiff was deposed on January 16, 2025. At that time, Plaintiff testified that the symptoms he continued to attribute to the collision were his neck, low back, and part of his left foot, and he rated his neck pain as 6/10. (Houvenier Decl., Ex. 3.)

On March 25, 2025, Plaintiff underwent Defendant's medical examination with Dr. Yablon. The report states Plaintiff described his current neck pain as 1/10, focal, and without radiation. (Kondrashov Decl., Ex. B.) The report also states the cervical examination showed full range of motion, no tenderness, no spasm, and negative Lhermitte's and Spurling's testing. (Id.) Thereafter, Plaintiff's September 18, 2025 and October 20, 2025 records from Dr. Patel's office reflect cervical pain complaints of 7/10 and 7-8/10 with upper-extremity symptoms. (Kondrashov Decl., Exs. C-D.) The September 18, 2025 note states that, if surgery is not indicated for the cervical spine, a spinal cord stimulator trial for that area would be a reasonable option at an approximate cost of \$100,000. (Kondrashov Decl., Ex. C.) The October 20, 2025 note states that if the cervical condition does not further improve or worsens, Plaintiff is a candidate for a cervical spinal cord stimulator trial, while deferring to the orthopedic spine surgeon regarding preceding options. (Kondrashov Decl., Ex. D.)

These post-deposition developments support a limited follow-up deposition. In opposition, Plaintiff notes that his neck complaints did not begin after the first deposition and that Defendant had an opportunity to ask about then-existing neck pain. Specifically, Plaintiff testified that his neck symptoms were present all the time and worsened with cold weather and with certain activities, including crouching or bending. (Flynn Decl. ¶ 5, Ex. A.) Plaintiff further cites pre-deposition medical records reflecting neck pain rated as high as 6/10 to 8/10, restricted cervical range of motion, and pain with activity. (Flynn Decl. ¶¶ 7-8, Ex. B.) The Court finds, however, no questioning in January 2025 could have addressed Plaintiff's later September and October 2025 treatment records, the later cervical spinal cord stimulator issue, Plaintiff's then-current symptoms, his

post-deposition activities, any intervening events, later treatment, communications with providers, or present understanding and intent regarding the potential cervical spinal cord stimulator.

Plaintiff's arguments concerning the adequacy of Dr. Yablon's examination do not eliminate Defendant's right to examine Plaintiff under oath about developments after the first deposition. Written discovery and Dr. Patel's deposition are not adequate substitutes for Plaintiff's own sworn testimony regarding his post-deposition symptoms, activities, treatment, intervening events, and understanding of the potential cervical spinal cord stimulator. Plaintiff's bad-faith argument based on counsel's prior correspondence also does not defeat the present showing in light of the objective post-deposition records. The prior deposition lasted approximately five and a half hours on the record, including questioning by Plaintiff's counsel. (Houvener Decl. ¶ 4.) Thus, some time remained under the presumptive seven-hour deposition limit, and any concern regarding burden, duplication, or harassment is addressed by limiting the deposition to two hours and to post-deposition matters, as ordered below.

Accordingly, the motion is granted. Defendant may take a second deposition of Plaintiff, limited to two hours on the record and limited to Plaintiff's activities, treatment, symptoms, related communications, intervening events, and understanding of or intent regarding the potential cervical spinal cord stimulator occurring after the January 16, 2025 deposition. Defendant may not reexamine Plaintiff on matters predating the first deposition except as reasonably necessary to frame questions concerning post-deposition developments.

Second Physical Examination of Plaintiff

Code of Civil Procedure section 2032.220 permits a defendant in a personal injury action to demand one physical examination of the plaintiff without leave of court. (Code Civ. Proc., § 2032.220, subd. (a).) A party seeking an additional physical examination must move for leave under Code of Civil Procedure section 2032.310. The motion must specify the time, place, manner, conditions, scope, and nature of the examination, the identity and specialty of the examiner, and must be accompanied by a meet-and-confer declaration. (Code Civ. Proc., § 2032.310, subd. (b).) "The court shall grant a motion for a physical or mental examination under Section 2032.310 only for good cause shown." (Code Civ. Proc., § 2032.320, subd. (a).) Good cause requires specific facts justifying the examination and showing that the inquiry is relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence. (Vinson v. Superior Court (1987) 43 Cal.3d 833, 840.) A plaintiff who places his physical condition at issue has a reduced privacy interest in discovery concerning that condition. (Id. at p. 842.)

Here, Defendant's showing complies with Code of Civil Procedure section 2032.310, subdivision (b), by identifying the proposed examiner, Dr. Dimitriy G. Kondrashov, his specialty as an orthopedic spine surgeon, the proposed date, time, and location of the examination, and the proposed scope, manner, and conditions of the examination. (Kondrashov Decl. ¶¶ 1-2, 6, 8; Houvener Decl. ¶ 7.) Defendant also submits a meet-and-confer declaration. (Houvener Decl. ¶ 3, Ex. 2.)

The Court finds good cause for a second physical examination of Plaintiff. As discussed above, Plaintiff later reported increased cervical pain with upper-extremity symptoms, and Dr. Patel's office identified Plaintiff as a candidate for a cervical spinal cord stimulator. (Kondrashov Decl. ¶¶ 5-8, Exs. C-D.) Although Plaintiff's earlier records reflected neck pain, activity-related fluctuation, and some radiating symptoms, the later records raise current issues concerning Plaintiff's cervical condition, potential future treatment, and damages. Dr. Kondrashov also identifies specific concerns with the later records, including physical-examination findings in a telemedicine note, identical findings in the later in-person note, and insufficient documented findings to support the cervical spinal cord stimulator issue. (Id.) These specific post-examination developments justify a current examination.

The examination, as limited by the Court, is proportional and narrowly tailored. Dr. Kondrashov states the examination can be completed within one hour and will not be intrusive or painful. (Kondrashov Decl. ¶ 6.) Plaintiff resides within 75 miles of Dr. Kondrashov's Van Nuys office, and Defendant will provide a Spanish interpreter. (Houvener Decl. ¶ 7.) The examination is also limited to the body areas and subject matter tied to the asserted post-examination developments. Written discovery, records review, and treating-provider testimony are not adequate substitutes for a current, limited, non-invasive examination directed to Plaintiff's claimed cervical and upper-extremity condition. Nor does Defendant's failure to provide Plaintiff's deposition transcript to Dr. Yablon or Dr. Kondrashov defeat good cause; that issue can be addressed by providing the

relevant materials before the examination and goes to the weight of any expert opinion, not whether a limited current examination is warranted.

Accordingly, the motion is granted in part. Plaintiff shall appear for a physical examination by Dr. Kondrashov as described in Defendant's notice, except as limited by this order. The examination shall last no more than one hour, shall be conducted with a Spanish interpreter present, and shall not include x-rays or other diagnostic testing unless Plaintiff consents. Defendant's request for any late-cancellation or no-show fee is denied.

CONCLUSION

Defendant's motion to compel a second deposition of Plaintiff is granted. Defendant may take a second deposition of Plaintiff, limited to two hours on the record and limited to Plaintiff's activities, treatment, symptoms, and related communications or events occurring after the January 16, 2025 deposition. Defendant may not reexamine Plaintiff on matters predating the first deposition except as reasonably necessary to frame questions concerning post-deposition developments. The deposition shall occur within 30 days of this order, unless the parties agree in writing to a later date.

Defendant's motion to compel a second physical examination of Plaintiff is granted in part. Plaintiff shall appear for a physical examination by Dr. Dimitriy G. Kondrashov on August 26, 2026, at 1:00 p.m., at 6815 Noble Avenue, Van Nuys, California 91405, unless the parties agree in writing to another date, time, or location. The examination shall proceed as described in Defendant's notice, except as limited by this order. The examination shall last no more than one hour, shall be conducted with a Spanish interpreter present, and shall not include x-rays or other diagnostic testing unless Plaintiff consents. Defendant's request for any late-cancellation or no-show fee is denied.

Dept. F-46

Hearing Date: July 8, 2026

Case Number: 24CHCV02118

DEFENDANT DARRON ALFRED MCCULLER'S MOTIONS TO (1) COMPEL

SECOND DEPOSITION OF PLAINTIFF SEBASTIAN ROLDAN CARRANZA, AND (2) COMPEL SECOND

PHYSICAL EXAMINATION OF PLAINTIFF SEBASTIAN ROLDAN CARRANZA

Motions filed on May 19, 2026 and May 26, 2026.

MOVING PARTY: Defendant Darron Alfred McCuller

RESPONDING PARTY: Plaintiff Sebastian Roldan Carranza

NOTICE: OK.

RELIEF REQUESTED: Orders compelling Plaintiff to appear for a second deposition

and submit to a second physical examination.

RULING: Granted in part. Defendant is granted leave to take a limited subsequent deposition of Plaintiff and conduct a limited second physical examination of Plaintiff.

BACKGROUND

On June 7, 2024, Plaintiff filed this action against Defendant. On January 16, 2025, Defendant deposed Plaintiff. On March 25, 2025, Plaintiff underwent a defense medical examination with Dr. Jeffrey Yablon. On May 19, 2026, Defendant filed a motion to compel a second deposition of Plaintiff, supported by the declarations of Austin L. Houvener and Dr. Dimitriy G. Kondrashov and exhibits. On June 9, 2026, Plaintiff opposed the deposition motion, supported by the declarations of Tara-Jane Flynn and John Hinestrosa and exhibits. On June 16, 2026, Defendant filed a reply and evidentiary objections.

On May 26, 2026, Defendant filed a motion to compel a second physical examination of Plaintiff, supported by the declarations of Austin L. Houvener and Dr. Dimitriy G. Kondrashov and exhibits. On June 24, 2026, Plaintiff opposed the examination motion, supported by the declarations of Tara-Jane Flynn and John Hinestrosa and exhibits. On June 25, 2026, Plaintiff filed an amended notice of errata regarding exhibits submitted with the Flynn

declaration. On June 29, 2026, Defendant filed a reply and evidentiary objections.

EVIDENTIARY OBJECTIONS

Defendant objects to the Hinestrosa declarations filed in opposition to both motions. The Court does not rely on the Hinestrosa declarations in resolving either motion. Because the challenged evidence is not material to the Court's ruling, the objections are overruled as moot.

DISCUSSION

Second Deposition of Plaintiff

"Any party may obtain discovery . . . by taking in California the oral deposition of any person, including a party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency." (Code Civ. Proc. § 2025.010.) "[A] deposition examination of the witness by all counsel, other than the witness' counsel of record, shall be limited to seven hours of total testimony." (Code Civ. Proc., § 2025.290, subd. (a).) "The court shall allow additional time, beyond any limits imposed by this section, if needed to fairly examine the deponent or if the deponent, or any other circumstance impedes or delays the examination." (Code Civ. Proc., § 2025.290, subd. (a).)

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Here, Defendant has shown good cause for a limited subsequent deposition of Plaintiff. Plaintiff was deposed on January 16, 2025.

At that time, Plaintiff testified that the symptoms he continued to attribute to the collision were his neck, low back, and part of his left foot, and he rated his neck pain as 6/10. (Houvener Decl., Ex. 3.)

On March 25, 2025, Plaintiff underwent Defendant's medical

examination with Dr. Yablon. The report states Plaintiff described his current neck pain as 1/10, focal, and without radiation. (Kondrashov Decl., Ex. B.) The report also states the cervical examination showed full range of motion, no tenderness, no spasm, and negative Lhermitte's and Spurling's testing. (Id.)

Thereafter, Plaintiff's September 18, 2025 and October 20, 2025 records from Dr. Patel's office reflect cervical pain complaints of 7/10 and 7-8/10 with upper-extremity symptoms. (Kondrashov Decl., Exs. C-D.) The September 18, 2025 note states that, if surgery is not indicated for the cervical spine, a spinal cord stimulator trial for that area would be a reasonable option at an approximate cost of \$100,000. (Kondrashov Decl., Ex. C.) The October 20, 2025 note states that if the cervical condition does not further improve or worsens, Plaintiff is a candidate for a cervical spinal cord stimulator trial, while deferring to the orthopedic spine surgeon regarding preceding options. (Kondrashov Decl., Ex. D.)

These post-deposition developments support a limited follow-up deposition. In opposition, Plaintiff notes that his neck complaints did not begin after the first deposition and that Defendant had an opportunity to ask about then-existing neck pain. Specifically, Plaintiff testified that his neck symptoms were present all the time and worsened with cold weather and with certain activities, including crouching or bending. (Flynn Decl. ¶ 5, Ex.

A.) Plaintiff further cites pre-deposition medical records reflecting neck pain rated as high as 6/10 to 8/10, restricted cervical range of motion, and pain with activity. (Flynn Decl. ¶¶ 7-8, Ex. B.) The Court finds, however, no questioning in January 2025 could have addressed Plaintiff's later September and October 2025 treatment records, the later cervical spinal cord stimulator issue, Plaintiff's then-current symptoms, his post-deposition activities, any intervening events, later treatment, communications with providers, or present understanding and intent regarding the potential cervical spinal cord stimulator.

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Yablon's examination do not eliminate Defendant's right to examine Plaintiff under oath about developments after the first deposition. Written discovery and Dr. Patel's deposition are not adequate substitutes for Plaintiff's own sworn testimony regarding his post-deposition symptoms, activities, treatment, intervening events, and understanding of the potential cervical spinal cord stimulator. Plaintiff's bad-faith argument based on counsel's prior correspondence also does not defeat the present showing in light of the objective post-deposition records. The prior deposition lasted approximately five and a half hours on the record, including questioning by Plaintiff's counsel.

(Houvener Decl. ¶ 4.) Thus, some time remained under the presumptive seven-hour

deposition limit, and any concern regarding burden, duplication, or harassment is addressed by limiting the deposition to two hours and to post-deposition matters, as ordered below.

Accordingly, the motion is granted. Defendant may take a second deposition of Plaintiff, limited to two hours on the record and limited to Plaintiff's activities, treatment, symptoms, related communications, intervening events, and understanding of or intent regarding the potential cervical spinal cord stimulator occurring after the January 16, 2025 deposition. Defendant may not reexamine Plaintiff on matters predating the first deposition except as reasonably necessary to frame questions concerning post-deposition developments.

Second Physical Examination of Plaintiff

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motion for a physical or mental examination under Section 2032.310 only for good cause shown.” (Code Civ. Proc., § 2032.320, subd. (a).) Good cause requires specific facts justifying the examination and showing that the inquiry is relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence. (Vinson v. Superior Court (1987) 43 Cal.3d 833, 840.) A plaintiff who places his physical condition at issue has a reduced privacy interest in discovery concerning that condition. (Id. at p. 842.)

Here, Defendant’s showing complies with Code of Civil

Procedure section 2032.310, subdivision (b), by identifying the proposed examiner, Dr. Dimitriy G. Kondrashov, his specialty as an orthopedic spine surgeon, the proposed date, time, and location of the examination, and the proposed scope, manner, and conditions of the examination. (Kondrashov Decl. ¶¶ 1-2, 6, 8; Houvener Decl. ¶ 7.) Defendant also submits a meet-and-confer declaration. (Houvener Decl. ¶ 3, Ex. 2.)

The Court finds good cause for a second physical examination of Plaintiff. As discussed above, Plaintiff later reported increased cervical pain with upper-extremity symptoms, and Dr. Patel’s office identified Plaintiff as a candidate for a cervical spinal cord stimulator. (Kondrashov Decl. ¶¶ 5-8, Exs. C-D.) Although Plaintiff’s earlier records reflected neck pain,

activity-related fluctuation, and some radiating symptoms, the later records raise current issues concerning Plaintiff's cervical condition, potential future treatment, and damages. Dr. Kondrashov also identifies specific concerns with the later records, including physical-examination findings in a telemedicine note, identical findings in the later in-person note, and insufficient documented findings to support the cervical spinal cord stimulator issue. (Id.) These specific post-examination developments justify a current examination.

The examination, as limited by the Court, is proportional and narrowly tailored. Dr. Kondrashov states the examination can be completed within one hour and will not be intrusive or painful. (Kondrashov Decl. ¶ 6.)

Plaintiff resides within 75 miles of Dr. Kondrashov's Van Nuys office, and Defendant will provide a Spanish interpreter. (Houvener Decl. ¶ 7.) The examination is also limited to the body areas and subject matter tied to the asserted post-examination developments. Written discovery, records review, and treating-provider testimony are not adequate substitutes for a current, limited, non-invasive examination directed to Plaintiff's claimed cervical and upper-extremity condition. Nor does Defendant's failure to provide Plaintiff's deposition transcript to Dr. Yablon or Dr. Kondrashov defeat good cause; that issue can be addressed by providing the relevant materials before the

examination and goes to the weight of any expert opinion, not whether a limited current examination is warranted.

Accordingly, the motion is granted in part. Plaintiff shall

appear for a physical examination by Dr. Kondrashov as described in Defendant's

notice, except as limited by this order. The examination shall last no more

than one hour, shall be conducted with a Spanish interpreter present, and shall

not include x-rays or other diagnostic testing unless Plaintiff consents.

Defendant's request for any late-cancellation or no-show fee is denied.

CONCLUSION

Defendant's motion to compel a second deposition of

Plaintiff is granted. Defendant may take a second deposition of Plaintiff,

limited to two hours on the record and limited to Plaintiff's activities,

treatment, symptoms, and related communications or events occurring after the

January 16, 2025 deposition. Defendant may not reexamine Plaintiff on matters

predating the first deposition except as reasonably necessary to frame

questions concerning post-deposition developments. The deposition shall occur

within 30 days of this order, unless the parties agree in writing to a later

date.

Defendant's motion to compel a second physical examination

of Plaintiff is granted in part. Plaintiff shall appear for a physical

examination by Dr. Dimitriy G. Kondrashov on August 26, 2026, at 1:00 p.m., at 6815 Noble Avenue, Van Nuys, California 91405, unless the parties agree in writing to another date, time, or location. The examination shall proceed as described in Defendant's notice, except as limited by this order. The examination shall last no more than one hour, shall be conducted with a Spanish interpreter present, and shall not include x-rays or other diagnostic testing unless Plaintiff consents. Defendant's request for any late-cancellation or no-show fee is denied.